2013 MAR -5 AM 11:46

Bernard J. Youngblood
Wayne County Register of Deeds
March 05, 2013 11:46 AM
Inst:2013078091 ASG Pages:5
Liber:50543 Page:756

Return To:
First Title & Escrow
7361 Calhoun Pl, STE 200
Rockville, MD 20855

PREPARED BY:
~~Record and Return to:~~
Ameriprise Bank, FSB/ RUTH OWEN
301 W. Bay Street
Jacksonville, FL 32202
File #6901560023
Min #100475269015600237
MERS Phone 1-888-679-6377

(2)

T-88699-13

SUBORDINATION AGREEMENT (MORTGAGE)

NOTICE: THIS SUBORDINATION AGREEMENT RESULTS IN YOUR SECURITY INTEREST IN THE PROPERTY BECOMING SUBJECT TO AND OF LOWER PRIORITY THAN THE LIEN OF SOME OTHER OR LATER SECURITY INSTRUMENT. IT IS RECOMMENDED THAT, PRIOR TO THE EXECUTION OF THIS SUBORDINATION AGREEMENT, THE PARTIES CONSULT WITH THEIR ATTORNEYS WITH RESPECT THERETO.

THIS AGREEMENT is made on this 30th day of January, 2013, between Matthew Reynolds and Jodie Reynolds, husband and wife, who is/are the owner(s) of the land hereinafter described (the Borrower(s)"), and Mortgage Electronic Registration Systems, Inc. (MERS) as nominee for Ameriprise Bank, FSB, (the "Mortgagee").

WHEREAS, Borrower(s) executed a Mortgage (the "Subordinated Mortgage"), dated July 26, 2010, for the benefit of Mortgage Electronic Registration Systems, Inc. (MERS) as nominee for Ameriprise Bank, FSB (Mortgagee), and which encumbers the following described real property:

679 Rivard, Grosse Pointe, MI 48230;
As more particularly described in Exhibit "A" attached hereto;

(the "Property"), to secure a Note in the sum of $31,600.00 dated July 26, 2010, in favor of Mortgage Electronic Registration Systems, Inc. as nominee for Ameriprise Bank, FSB, as Mortgagee (the "Subordinated Note"), which Subordinated Mortgage was recorded September 30, 2010 in Book 48769, Page 849 in Official Records of Wayne County, State of MI.

WHEREAS, Flagstar Bank, FSB, its successors and/or assigns (the "New Lender"), desires to loan a sum not to exceed Two Hundred Sixty Three Thousand and NO/100-----Dollars ($263,000.00) (the "New Loan") on note of Borrower (the "New Note"), secured by a mortgage on and covering the Property (the "New Mortgage") dated FEB. 13, 2013 to be recorded concurrently with this Subordination Agreement in the Official Records of Wayne County, State of MI.

WHEREAS, to induce New Lender to make the New Loan, it is necessary that the Subordinated Mortgage be subordinated to the lien of the New Mortgage.

WHEREAS, it is to the mutual benefit of the parties that New Lender make the New Loan to Borrower, and Mortgagee is willing to agree that the New Mortgage will constitute a lien upon the Property which is unconditionally prior and superior to the lien of the Subordinated Mortgage.

NOW, THEREFORE, in consideration of the mutual benefits accruing to the parties and other valuable consideration the receipt and sufficiency of which consideration is hereby acknowledged, and in order to induce New Lender to make the New Loan, it is hereby declared understood and agreed as follows:

SECTION ONE: SUBORDINATION

Mortgagee hereby covenants, consents, and agrees that the Subordinated Mortgage is and shall continue to be subject and subordinate in lien to the lien of the New Mortgage and any renewals or extension thereof. Mortgagee also covenants and agrees to place an endorsement upon the

Subordinated Note stating that the Subordinated Mortgage has been subordinated to the lien of the New Mortgage.

SECTION TWO: APPROVAL OF LOAN TERMS

Mortgagee declares, agrees and acknowledges that it consents to and approves of (i) all provisions of the New Note and the New Mortgage; and (ii) all agreements, including but not limited to any loan or escrow agreements, between Borrower and New Lender for the disbursement of the proceeds of the New Loan.

SECTION THREE: BINDING EFFECT

This Agreement shall be binding on Mortgagee and its successors and assigns, including each and every subsequent owner and holder of the Subordinated Note, and the terms of this Agreement shall inure to the benefit of New Lender, its successors and assigns, including, without limitation, each and every subsequent owner and holder of the New Note, or any renewal extension, or rearrangement thereof.

SECTION FOUR: ENTIRE AGREEMENT

This Agreement shall be the whole and only agreement with regard to the subordination of the lien of the Subordinated Mortgage to the lien of the New Mortgage and shall supersede and cancel, but only insofar as would affect the priority between the New Mortgage and the Subordinated Mortgage, any prior agreements as to such subordination, including, but not limited to, those provisions, if any contained in the Subordinated Mortgage, which provide for the subordination of the lien thereof to another deed or deeds of trust or to another mortgage or mortgages.

IN WITNESS WHEREOF, the parties have executed this Agreement on the date first above written,

Mortgage Electronic Registration Systems, Inc.

By: Pat Mitchell
Pat Mitchell, Assistant Secretary

Beneficiary: Ameriprise Bank, FSB

By: _____
Ruth Owen, Sr. Vice ~~President~~

Borrowers:

see page 3
Matthew Reynolds

see page 3
Jodi Reynolds

Subordinated Note stating that the Subordinated Mortgage has been subordinated to the lien of the New Mortgage.

SECTION TWO: APPROVAL OF LOAN TERMS

Mortgagee declares, agrees and acknowledges that it consents to and approves of (i) all provisions of the New Note and the New Mortgage; and (ii) all agreements, including but not limited to any loan or escrow agreements, between Borrower and New Lender for the disbursement of the proceeds of the New Loan.

SECTION THREE: BINDING EFFECT

This Agreement shall be binding on Mortgagee and its successors and assigns, including each and every subsequent owner and holder of the Subordinated Note, and the terms of this Agreement shall inure to the benefit of New Lender, its successors and assigns, including, without limitation, each and every subsequent owner and holder of the New Note, or any renewal extension, or rearrangement thereof.

SECTION FOUR: ENTIRE AGREEMENT

This Agreement shall be the whole and only agreement with regard to the subordination of the lien of the Subordinated Mortgage to the lien of the New Mortgage and shall supersede and cancel, but only insofar as would affect the priority between the New Mortgage and the Subordinated Mortgage, any prior agreements as to such subordination, including, but not limited to, those provisions, if any contained in the Subordinated Mortgage, which provide for the subordination of the lien thereof to another deed or deeds of trust or to another mortgage or mortgages.

IN WITNESS WHEREOF, the parties have executed this Agreement on the date first above written,

Mortgage Electronic Registration Systems, Inc.

By: _____
Pat Mitchell, Assistant Secretary

↑ original signature on pg. 2

Beneficiary: Ameriprise Bank, FSB

By: _____
Ruth Owen, Sr. Vice ~~President~~

↑ original signature on pg. 2

Borrowers:

_____
Matthew Reynolds

_____
Jodi Reynolds

State of Florida

County of Duval

The foregoing instrument was acknowledged before me this 30th day of January, 2013, by Pat Mitchell, Assistant Secretary of Mortgage Electronic Registration Systems, Inc., a Delaware corporation, on behalf of said corporation. She is personally known to me or has produced _____ as identification.

Lisa R. Gilliam LRG

Notary Public, State of Florida at Large

My commission expires: 5-31-15

Notary Public State of Florida
Lisa R Gilliam
My Commission EE098650
Expires 05/31/2015

State of Florida

County of Duval

The foregoing instrument was acknowledged before me this 30th day of January, 2013, by Ruth Owen, Sr. Vice President of Ameriprise Bank, FSB, on behalf of said corporation. She is personally known to me or has produced _____ as identification.

Lisa R. Gilliam

Notary Public, State of Florida at Large

My Commission Expires: 5-31-15

Notary Public State of Florida
Lisa R Gilliam
My Commission EE098650
Expires 05/31/2015

4 of 5

EXHIBIT "A" LEGAL DESCRIPTION

THE FOLLOWING DESCRIBED PREMISES SITUATED IN THE CITY OF GROSSE POINTE, COUNTY OF WAYNE, STATE OF MI:

LOT(S) 103, GROSSE POINTE COLONY, ACCORDING TO THE RECORDED PLAT THEREOF, AS RECORDED IN LIBER 31 OF PLATS, PAGE 95.

COMMONLY KNOWN AS: 679 RIVARD BLVD, GROSSE POINTE, MI 48230

PARCEL ID: 37-003-07-0103-000